



SPONSOR: Rep. Morrison & Sen. Walsh & Rep. Osienski &
Rep. K. Williams
Reps. Burns, Snyder-Hall, Lambert, Phillips, Gorman;
Sen. Cruce

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 84

AN ACT TO AMEND TITLE 19 OF THE DELAWARE CODE RELATING TO EMPLOYER-SPONSORED
MEETINGS OR COMMUNICATIONS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 711, Title 19 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows and redesignate accordingly:

3 § 711. Unlawful employment practices; employer practices.

4 (a) *Definitions.* —

5 As used in this section:

6 (3) “Political matters” means matters relating to political parties, legislation, regulation, public policy,
7 campaigns for election, or the decision to join or support any political party or political, civic, community, fraternal or
8 labor organization.

9 (5) “Religious matters” means matters relating to religious belief, affiliation, practice, membership in, or
10 support of any religious organization, association, or other group.

11 (b) It shall be an unlawful employment practice for an employer to do any of the following:

12 (4) Require an employee to attend or participate in an employer-sponsored meeting or communication with
13 the employer or the employer’s agent, representative, or designee if the primary purpose of the meeting or
14 communication is to communicate the opinion of the employer about religious or political matters.

15 a. Paragraph (b)(4) of this section does not apply where the employer-sponsored meeting or
16 communication is required by law, wholly voluntary, or necessary for the employee to perform the employee’s
17 lawfully required job duties.

18 b. Paragraph (b)(4) of this section does not apply to religious employers where the employer-sponsored
19 meetings or communications are religious.

20 c. An employer may not threaten, discharge, discipline, or take any adverse employment action against an
21 employee because:

22 1. The employee does not attend or participate in an employer-sponsored meeting or communication
23 described in this subsection.

24 2. The employee or a person acting on behalf of the employee makes a good-faith report of a
25 violation or suspected violation of this section.

26 Section 2. Amend § 715, Title 19 of the Delaware Code by making deletions as shown by strike through and
27 insertions as shown by underline as follows:

28 § 715. Judicial remedies; civil penalties.

29 (d) In any action brought by the Department for violation of the retaliation provision of ~~§ 711(g)~~ §§ 711(b)(4) and
30 (g) of this title, the Court shall fine the employer not less than \$1,000 nor more than \$5,000 for each violation, in addition
31 to any liability for damages under this section.

SYNOPSIS

 This bill prohibits employers from requiring employees to participate in mandatory meetings or communications that are religious or political in nature. This bill also prohibits employers from punishing employees for the refusing to participate in the same. Meetings or communications necessary for their job duties or that are voluntary are excepted. Violators of the bill are subject to civil penalties between \$1,000 - \$5,000 per violation.